

1 HOUSE BILL NO. 293

2 INTRODUCED BY T. MILLETT, J. WEBER, C. FITZPATRICK

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING ELECTION ADMINISTRATOR LAWS; REQUIRING
5 APPOINTED ELECTION ADMINISTRATORS TO REPORT TO THE COUNTY GOVERNING BODY;
6 AMENDING SECTION 13-1-301, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 **Section 1.** Section 13-1-301, MCA, is amended to read:

11 **"13-1-301. Election administrator.** (1) (a) The county clerk and recorder of each county is the
12 election administrator unless the governing body of the county ~~designates another official or~~ appoints an
13 election administrator.

14 (b) If the governing body of the county appoints an election administrator, that individual shall
15 report directly to the governing body of the county.

16 (2) The election administrator is responsible for the administration of all procedures relating to
17 registration of electors and conduct of elections, shall keep all county records relating to elector registration and
18 elections, and is the primary point of contact for the county with respect to the statewide voter registration list
19 and implementation of other provisions of applicable federal law governing elections.

20 (3) The election administrator may appoint a deputy election administrator for each political
21 subdivision required to hold elections."

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23 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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